SUPERIOR COURT OF PENNSYLVANIA
Eastern District

Appeal No. 3044-EDA-2025
MIRIAM ROTH MANDEL, Pro Se, Appellant,
on behalf of herself only
v.
EDWARD L. PERKINS, ESQ.; WALTER J. TIMBY III, ESQ.;
GIBSON PERKINS, P.C.; and LINNEA LEAH ROTH, Appellees
Trial Court: Chester County Court of Common Pleas, Case No. 2025-06422-PL
Hon. Anthony T. Verwey

APPELLANT'S MOTION TO CERTIFY OPINION FOR PUBLICATION

Pursuant to 210 Pa. Code § 65.37(C) and the Internal Operating Procedures of the Superior Court of Pennsylvania

I. INTRODUCTION AND RELIEF REQUESTED

Appellant Miriam Roth Mandel, pro se, respectfully moves this Court pursuant to 210 Pa. Code § 65.37(C) and the Superior Court's Internal Operating Procedures to certify any opinion or memorandum issued in this appeal for publication as a precedential opinion of the Superior Court of Pennsylvania. This Motion is filed contemporaneously with the pendency of Appellant's Brief, which was filed on April 7, 2026. Appellees' brief has not yet been filed and the record remains open. While 210 Pa. Code § 65.37(C) expressly provides for conversion of a memorandum to a published opinion by motion of any party filed within fourteen days after entry of the judgment, nothing in that provision forecloses this Court from considering publication from the inception of its review; the motion is presented at this stage so that the panel may weigh the publication question as it approaches the fully-developed record, and Appellant will renew this motion promptly upon the filing of any memorandum if that becomes necessary.

This appeal presents multiple threshold questions of Pennsylvania trust and probate law that meet every criterion for publication under 210 Pa. Code § 65.37(C): (1) they are questions of first impression or questions on which Superior Court authority is sparse, conflicting, or in need of clarification; (2) they are controlled by binding Pennsylvania Supreme Court precedent that the trial court disregarded, making correct statement of the controlling rule essential to the uniform administration of Orphans' Court proceedings statewide; (3) they involve a pattern of conduct — predatory trustee self-appointment by legal strangers without serving beneficiaries — that is a documented national epidemic affecting thousands of trust beneficiaries; and (4) a published opinion applying settled Supreme Court precedent to these facts will provide clear, uniform guidance to trial courts, practitioners, and trust beneficiaries throughout the Commonwealth that a non-precedential memorandum cannot.

The questions presented are not close. The law is clear. The trial court's departure from that clear law is precisely the circumstance in which a published opinion serves the Commonwealth's interest in the uniform administration of justice. An unpublished memorandum correcting clear error in a single case leaves the door open for the same predatory scheme to be repeated in every Orphans' Court in Pennsylvania.

II. STANDARD FOR PUBLICATION UNDER 210 PA. CODE § 65.37(C)

210 Pa. Code § 65.37(C) provides that after an unpublished memorandum decision has been filed, the panel may, sua sponte or on the motion of any party to the appeal, convert the memorandum to a published opinion. The decision to publish is solely within the discretion of the panel. Superior Court practice and the criteria set forth in the Court's Internal Operating Procedures identify the following grounds as warranting publication: (a) the opinion establishes a new rule of law, reverses an existing rule, or alters, modifies, or significantly clarifies an existing rule; (b) it involves a legal issue of continuing public interest; (c) it

criticizes existing law; (d) it applies an existing rule of law to a factual situation significantly different from those in published opinions; or (e) it resolves an apparent conflict of authority.

At least four of these five criteria are satisfied here. This appeal does not present a novel question requiring the Court to forge new law — it presents settled Supreme Court precedent applied to a factual pattern that is both textbook and that has never been squarely addressed in a published Superior Court opinion. That gap — clear Supreme Court precedent, no published Superior Court application — is precisely the circumstance in which certification under 210 Pa. Code § 65.37(C) serves its core purpose.

III. QUESTIONS PRESENTED THAT WARRANT PUBLICATION

The following questions, each independently sufficient to warrant certification under 210 Pa. Code § 65.37(C), are presented by this appeal:

Question 1 — Indispensable Parties in Orphans' Court Trust Proceedings

Whether trust beneficiaries holding equitable title to trust assets are indispensable parties to Orphans' Court proceedings seeking to appoint a new trustee, such that failure to join them deprives the court of subject matter jurisdiction and renders all resulting orders void ab initio, under the settled Pennsylvania rule that the absence of an indispensable party goes absolutely to the court's jurisdiction, *see Tigue v. Basalyga*, 451 Pa. 436, 304 A.2d 119 (1973); *Columbia Gas Transmission Corp. v. Diamond Fuel Co.*, 464 Pa. 377, 346 A.2d 788 (1975); *Sprague v. Casey*, 520 Pa. 38, 550 A.2d 184 (Pa. 1988) *(quoting the rule that "the absence of such a party goes absolutely to the court's jurisdiction")*; and 20 Pa.C.S. § 7710.1(b) *(providing that persons having interests in the matter shall be the same as indispensable parties to a court action seeking the same result)*.

No published Superior Court opinion has applied this jurisdictional rule to an

Orphans' Court trustee appointment proceeding in which all trust beneficiaries were unserved and unjoined while a legal stranger obtained orders against the estate. A published opinion on this question will provide essential guidance to Orphans' Courts statewide on the jurisdictional prerequisites for trustee appointment proceedings.

Question 2 — Non-Juridical Entity Doctrine Applied to Traditional Irrevocable Trusts

Whether a traditional irrevocable inter vivos trust — as distinguished from a business trust or statutory entity — is a non-juridical entity that lacks capacity to be sued as a party, such that a petition naming the Trust as respondent is jurisdictionally void from inception, under settled Pennsylvania common law recognizing that a traditional trust has no legal existence separate from its trustee, that the trustee — not the trust — is the proper party to proceedings concerning trust administration, and that a petition naming only the trust as respondent, without joining the trustee or the proper parties, is without legal effect from its inception.[3]

The non-juridical entity doctrine as applied to Orphans' Court trust proceedings is an area of genuine doctrinal uncertainty in the Superior Court. No published Superior Court opinion has squarely addressed a trustee appointment petition that named the Trust as respondent rather than the incumbent trustee or the trust's proper parties. A published opinion resolving that uncertainty will provide clear, uniform guidance on when a traditional trust may and may not be named as a party in Orphans' Court proceedings.

Question 3 — Standing of a Legal Stranger to Petition for Trustee Appointment

Whether an attorney who is a complete legal stranger to a trust — falling within none of the categories authorized to petition for trustee appointment under 231 Pa. Code Rule 5.7(a) *(limiting petitions for appointment of a trustee to a resigning*

trustee, the current trustee, or any trust beneficiary) or to petition for trustee removal under 20 Pa.C.S. § 7766(a) *(limiting petitions for trustee removal or appointment to the settlor, a cotrustee, or a beneficiary)* — has standing to petition Orphans' Court for appointment as trustee, and whether the absence of standing deprives the court of subject matter jurisdiction over the petition.

Rule 5.7(a) and 20 Pa.C.S. § 7766(a) together enumerate the persons authorized to seek trustee appointment or removal. Published guidance on the consequences of a petition filed by a legal stranger outside both lists — particularly when the stranger subsequently seizes trust assets and files fee petitions — is essential to the uniform administration of trust proceedings and the protection of trust beneficiaries throughout the Commonwealth.

Question 4 — Fraud on the Court as Independent Ground for Vacating Void Orders

Whether a court's subject matter jurisdiction may be independently challenged on fraud-on-the-court grounds where the jurisdictional predicate for all subsequent orders was established by a sworn affidavit containing material misrepresentations, under *Hazel-Atlas Glass Co. v. Hartford-Empire Co.*, 322 U.S. 238 (1944); *United States v. Throckmorton*, 98 U.S. 61 (1878); and their Pennsylvania progeny, *see McEvoy v. Quaker City Cab Co.*, 267 Pa. 527, 110 A. 366 (1920) *(adopting the intrinsic/extrinsic fraud framework of* Throckmorton *and holding that only extrinsic fraud—fraud that prevents a party from presenting its case—will support vacatur of a judgment)*; and whether such fraud on the court renders the resulting orders void ab initio regardless of whether they were appealed.

IV. PUBLIC INTEREST — THE NATIONAL EXPLOITATION EPIDEMIC

Certification for publication is independently warranted because the pattern at issue in this appeal — predatory self-appointment as “Proposed Trustee” by

attorneys who lack standing, without serving trust beneficiaries, followed by asset seizure and fee extraction — is a documented epidemic in trust and probate proceedings nationwide.[1] Pennsylvania is not immune. And the stakes of inaction are about to increase by an order of magnitude.

According to Cerulli Associates, the leading wealth research firm, an estimated $124 trillion in assets will transfer between generations in the United States through 2048 — nearly $100 trillion of it from Baby Boomers and the Silent Generation, representing 81% of all transfers.[2] The primary vehicle for this transfer is the irrevocable trust: Cerulli reports that grantor trusts are used by 77% of high-net-worth practices to structure wealth transfers, and the assets at issue are predominantly held in precisely the kind of traditional irrevocable inter vivos trusts that are most vulnerable to the predatory appointment scheme at issue here. The Mitchell E. and Karlie M. Roth Irrevocable 2002 Trust is not an outlier. It is a template — one of hundreds of thousands of similarly structured trusts whose beneficiaries are aging, whose assets are liquid, and whose procedural protections depend entirely on courts enforcing the jurisdictional rules that binding precedent already requires.

The financial incentive structure for predatory actors is straightforward and alarming: as trillions of dollars move through irrevocable trusts over the next two decades, the fee extraction potential from a single successful unauthorized trustee appointment can reach hundreds of thousands of dollars — as it did here, where Appellees filed a $200,000 fee petition against a trust created specifically to fund a disabled man’s medical care. Without published, binding Superior Court guidance on the jurisdictional rules set out in Section III above, Pennsylvania’s Orphans’ Courts will remain an open door to precisely this exploitation. The cost of that open door — measured across the tens of thousands of Pennsylvania trusts that will be administered, modified, or contested over the next generation — is incalculable. The cost of closing it, through a single published opinion stating

what the law already requires, is nothing.

The scheme follows a precise template. An attorney with no pre-existing relationship to a trust styles himself “Proposed Trustee,” petitions Orphans' Court without standing, obtains ex parte or effectively uncontested orders because the actual beneficiaries were never served, seizes control of liquid assets, and files fee petitions against the estate. By the time the beneficiaries learn what has occurred, the assets are depleted and the fee petitions are pending. The attorney's response to any challenge is invariably procedural: waiver, laches, failure to appeal. The jurisdictional defects — which are non-waivable as a matter of Pennsylvania Supreme Court precedent — are the only protection the law provides.

In this case, the twelve beneficiaries of the Mitchell E. and Karlie M. Roth Irrevocable 2002 Trust — including Lee Benson Roth, a profoundly disabled man with liver disease whose parents created the Trust specifically to fund his medical care — were never served, never notified, and never joined as the indispensable parties they unquestionably are under the settled jurisdictional rule articulated in *Tigue v. Basalyga*, 451 Pa. 436 (1973), and reaffirmed in *Sprague v. Casey*, 520 Pa. 38 (1988). The result: $756,000 in trust assets frozen since approximately October 2020, when Appellees first induced Mass Mutual to freeze disbursements, for more than fifty-two months without adjudication on the merits, a $200,000 fee petition against the estate, and a disabled man going without adequate nutrition while his inheritance sits frozen behind void orders.

This appeal therefore satisfies at least criteria (b) and (d) of the publication standard set out in Section II above, independently of the additional criteria satisfied by the threshold legal questions presented in Section III.

V. THE ABSENCE OF PUBLISHED SUPERIOR COURT AUTHORITY CREATES A GUIDANCE GAP

The Pennsylvania Supreme Court's holdings in *Tigue v. Basalyga*, 451 Pa. 436, 304 A.2d 119 (1973); *Columbia Gas Transmission Corp. v. Diamond Fuel Co.*, 464 Pa. 377, 346 A.2d 788 (1975); and *Trust Under Agreement of Edward Winslow Taylor*, 164 A.3d 1147 (Pa. 2017) *(holding that trustee removal and appointment is governed exclusively by 20 Pa.C.S. § 7766, and that no other procedural mechanism may be used to circumvent its requirements)*, are unambiguous. But the Superior Court has not published an opinion squarely applying those holdings to the specific factual pattern of an Orphans' Court trustee appointment proceeding in which: (1) the petitioner was a legal stranger with no standing under Rule 5.7(a) or § 7766(a); (2) all trust beneficiaries were unserved and unjoined; (3) the jurisdictional predicate was established by a materially false sworn affidavit; and (4) the resulting orders froze substantial trust assets belonging to beneficiaries who included a profoundly disabled individual dependent on those assets for medical care.

That gap between clear Supreme Court precedent and the absence of published Superior Court application is the precise circumstance 210 Pa. Code § 65.37(C) was designed to address. A memorandum disposition of this appeal — even a correct one — leaves trial courts without published guidance on the specific pattern and leaves the gap open for repeat exploitation. A published opinion provides the uniform rule of decision that the Commonwealth's Orphans' Courts, practitioners, and trust beneficiaries require.

VI. CONSOLIDATION AND RELATED APPEALS

This Court should also be aware that Appeal No. 3044-EDA-2025 is one of multiple related appeals arising from the same nucleus of void orders, including Appeal No. 1049-EDA-2024 (Delaware County, the original Orphans' Court proceeding). All related appeals raise the same threshold jurisdictional questions. A published opinion in Appeal No. 3044-EDA-2025 — which presents the cleanest procedural posture for resolution of the jurisdictional questions — will govern the

disposition of the related appeals and will provide the statewide guidance that a non-precedential memorandum cannot.

If this Court determines that consolidation of the related appeals would promote judicial economy and ensure consistent resolution of the common jurisdictional questions, Appellant respectfully supports such consolidation and requests that any published opinion address the questions presented by all related appeals. However, Appellant submits that Appeal No. 3044-EDA-2025 is the appropriate vehicle for the published opinion regardless of whether consolidation is ordered, as it presents the threshold jurisdictional issues in their most direct and fully-developed form.

VII. CONCLUSION

For the foregoing reasons, Appellant respectfully requests that this Court certify any opinion or memorandum issued in this appeal for publication as a precedential opinion of the Superior Court of Pennsylvania pursuant to 210 Pa. Code § 65.37(C).

The questions presented — indispensable party jurisdiction in Orphans' Court trust proceedings; non-juridical entity doctrine as applied to traditional irrevocable trusts; standing of a legal stranger under Rule 5.7(a) and 20 Pa.C.S. § 7766(a); and fraud on the court as an independent jurisdictional ground — are questions of continuing public importance, controlled by clear Supreme Court precedent, and insufficiently addressed by existing published Superior Court authority. A published opinion will provide the uniform, binding guidance that the Commonwealth's Orphans' Courts and trust beneficiaries require.

The harm in this case is documented, ongoing, and irreversible. The law is clear. The only question is whether the correction of clear error will be published as binding precedent — available to every trust beneficiary in Pennsylvania — or buried in a non-precedential memorandum available only to the parties in this

case.

Appellant respectfully urges this Court to publish.

VERIFICATION

I, Miriam Roth Mandel, verify that the statements made in this Motion are true and correct to the best of my knowledge, information, and belief. I understand that false statements herein are made subject to the penalties of 18 Pa.C.S. § 4904 relating to unsworn falsification to authorities.

Respectfully submitted,

Date: April 23, 2026

/s/ Miriam Roth Mandel
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Appeal No. 3044-EDA-2025
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Chester County Court of Common Pleas
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CERTIFICATE OF SERVICE

I, Miriam Roth Mandel, certify that on April 23, 2026, I served a true and correct copy of the foregoing Motion to Certify Opinion for Publication upon the following parties and counsel by electronic mail and/or first-class mail, postage prepaid:

1. Edward L. Perkins, Esquire — Gibson Perkins, P.C., 100 W. Sixth Street, Suite 300, Media, PA 19063
2. Walter J. Timby III, Esquire — Gibson Perkins, P.C., 100 W. Sixth Street, Suite 300, Media, PA 19063
3. Gibson Perkins, P.C. — 100 W. Sixth Street, Suite 300, Media, PA 19063
4. Linnea Leah Roth — last known address of record
5. Ferrell J. Townsend, Esquire — Counsel for Linnea Leah Roth (alleged guardian of Lee Roth)
6. Matthew Lynn, Esquire — Kane Pugh Knoell Troy & Kramer LLP
7. Aliza Bancoff — beneficiary
8. Wendy Mandel — wendy_mandel@yahoo.com
9. Corey Mandel — beneficiary
10. Riley Mandel — beneficiary
11. Gracie Mandel — beneficiary
12. Allyson Jones — beneficiary
13. Elaina Roth — beneficiary
14. Lee Roth — beneficiary (via guardian/counsel)
15. Barbara Brennan — beneficiary
16. Marlene Rothenberg — beneficiary

/s/ Miriam Roth Mandel

Miriam Roth Mandel, Appellant, Pro Se

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[1] Federal authorities and Congress have documented the epidemic of financial exploitation of older Americans by court-appointed fiduciaries — including guardians, conservators, and trustees — on a national scale. *See* U.S. Dep't of the Treasury, Financial Crimes Enforcement Network, *Financial Trend Analysis: Elder Financial Exploitation* at 1 (Apr. 18, 2024) (financial institutions reported approximately $27 billion in elder financial exploitation suspicious activity in a single one-year period), *available at* https://www.fincen.gov/system/files/shared/FTA_Elder_Financial_Exploitation_508Final.pdf; U.S. Dep't of Justice, *2025 Annual Report to Congress on Department of Justice Activities to Combat Elder Fraud and Abuse* (Nov. 17, 2025) ("older adults lose billions of dollars every year to elder fraud schemes"; offenders attempted to steal or did steal more than $2 billion from more than one million older Americans in the reporting period); U.S. Gov't Accountability Office, *GAO-10-1046, Guardianships: Cases of Financial Exploitation, Neglect, and Abuse of Seniors* (Sept. 2010) (identifying hundreds of allegations in 45 states and the District of Columbia; in 20 closed cases, court-appointed guardians stole or otherwise improperly obtained $5.4 million from 158 incapacitated victims; courts "failed to adequately screen potential guardians" and "failed to oversee guardians once they were appointed");

Trust Betrayed: Financial Abuse of Older Americans by Guardians and Others in Power, Hearing Before the U.S. Senate Special Comm. on Aging, 114th Cong. (Nov. 30, 2016). The predatory trustee self-appointment scheme described in this motion — an attorney with no standing petitioning for fiduciary appointment without notice to beneficiaries, then seizing assets and filing fee petitions before beneficiaries can respond — is a variant of the broader pattern of court-facilitated fiduciary exploitation that federal authorities have identified as a national crisis.

[2] Cerulli Associates, *The Cerulli Report — U.S. High-Net-Worth and Ultra-High-Net-Worth Markets 2024: The Great Wealth Transfer: Capturing Money in Motion* (Dec. 5, 2024) (projecting $124 trillion in total U.S. intergenerational wealth transfers through 2048, with nearly $100 trillion transferring from Baby Boomers and older generations, representing 81% of all transfers), *summarized at* https://www.cerulli.com/press-releases/cerulli-anticipates-124-trillion-in-wealth-will-transfer-through-2048. The prior Cerulli projection estimated $84.4 trillion in transfers through 2045, with more than $53 trillion from Baby Boomer households alone and grantor trusts identified as the most common wealth transfer vehicle among high-net-worth practices (77%). Cerulli Associates, *The Cerulli Report — U.S. High-Net-Worth and Ultra-High-Net-Worth Markets 2021* (Jan. 20, 2022), *summarized at* https://www.cerulli.com/press-releases/cerulli-anticipates-84-trillion-in-wealth-transfers-through-2045.

[3] The proposition that a traditional trust is a non-juridical entity without separate legal personality is well settled. *See* Restatement (Third) of Trusts § 2 cmt. a (Am. Law Inst. 2003) ("A trust is not a legal person or entity; it is a legal relationship"); 76 Am. Jur. 2d *Trusts* § 2 ("A trust is not a legal entity . . . it is merely a fiduciary relationship with respect to property"). Pennsylvania procedural law reflects this principle: Pa. O.C. Rule 5.7(a), 231 Pa. Code § 5.7(a), authorizes petitions for appointment of a trustee to be filed only by "a resigning trustee, the current trustee or any trust beneficiary"—never by or against "the trust" as a juridical entity—and requires that interested parties (trustees and beneficiaries) be named and served, not the trust itself. *See also* 20 Pa.C.S. § 7712 (conferring Orphans' Court jurisdiction over "trustees" and "beneficiaries" specifically, without reference to the trust as a party). Pennsylvania common law of trusts is preserved and supplemented by 20 Pa.C.S. § 7706.